

25STCV17948 25STCV17948

County: los-angeles

Division: Civil Law and Motion

Department: 512

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Case Number: 25STCV17948 Hearing Date: June 24, 2026 Dept: 512

HEARING DATE: Wed., June 24, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Jayapal v. FCA US LLC, COMP. FILED: 11-10-25

et al.

CASE NUMBER: 25STCV17948

NOTICE: OK

PROCEEDINGS: MOTION TO COMPEL INITIAL DISCOVERY DISCLOSURES

MOVING PARTY: Plaintiff

KISHORE JAYAPAL

RESP. PARTY: Defendant FCA

US LLC

MOTION TO COMPEL INITIAL DISCOVERY

DISCLOSURES

(CCP §§ 871.26(b), (h))

TENTATIVE RULING:

Plaintiff Kishore Jayapal's Motion to

Compel Initial Discovery Disclosures from Defendant FCA US LLC is DENIED. The

request for monetary sanctions is also DENIED.

Plaintiff is ordered to

give notice of ruling.

SERVICE:

☒ Proof of

Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address

(CCP §§ 1013, 1013a) OK

☒ 16/21 Court

Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed on June

5, 2026 ☐ Late ☐

☐ None

REPLY: Due by June 16, 2026 ☐ Late ☒ None

ANALYSIS:

I.

Background

This Song-Beverly Act (lemon law)

action arising out of Plaintiff Kishore Jayapal's ("Plaintiff") purchase and/or lease of a 2018 Chrysler Pacifica, VIN 2C4RC1L70JR129327 ("Subject Vehicle") on or about November 26, 2018 manufactured or distributed by Defendant FCA US LLC ("FCA") and repaired by Defendant Premier Chrysler Dodge Jeep Ram of Buena Park ("Premier CDJR"). On November 10, 2025, Plaintiff filed the operative First Amended Complaint ("FAC") against Defendants FCA, Premier CDJR, and DOES 1 through 10 (collectively, "Defendants"), alleging causes of action for: (1) Violation of Civil Code Section 1793.2(d); (2) Violation of Civil Code Section 1793.2(b); (3) Violation of Civil Code Section 1793.2(a)(3); (4) Breach of the Implied Warranty of Merchantability; (5) Negligent Repair; and (6) Fraudulent Inducement Concealment.

On April

29, 2026, Plaintiff filed the instant Motion to Compel Initial Discovery

Disclosures from FCA. On June 5, 2026, FCA filed an Opposition. To date, no reply has been filed.

II.

Legal

Standard

Under the Song-Beverly

Act, "[w]ithin 60 days after the filing

of the answer or other responsive pleading, all parties shall, without awaiting

a discovery request, provide to all other parties an initial disclosure and

documents pursuant to subdivisions (f), (g), and (h).” (Code Civ. Proc., §

871.26, subd. (b).) Specifically, “[t]he defendant or manufacturer shall

provide the following documents to all other parties pursuant to the timelines

prescribed in subdivision (b):[¶](1) Copy of or access to a version of the

owner’s manual for a motor vehicle of the same make, model, and year. [¶](2)

Any warranties issued in conjunction with the sale of the motor vehicle. [¶](3)

Sample brochures published for the motor vehicle. [¶](4) The motor vehicle’s

original invoice, if any, to the selling dealer. [¶](5) Sales or lease

agreement if the manufacturer is in possession. [¶](6) Motor vehicle

information reports, including build documentation, component information, and

delivery details. [¶](7) Entire warranty transaction history for the motor

vehicle. [¶](8) Listing of required field actions applicable to the motor

vehicle. [¶](9) Published technical service bulletins (“TSBs”)1 for

the same make, model, and year reasonably related to the nonconformities

pertaining to the motor vehicle. [¶](10) Published information service

bulletins (“ISBs”) for the same make, model, and year reasonably related to the

nonconformities pertaining to the motor vehicle. [¶](11) Records relating to

communications between the manufacturer or dealership and the owner or lessee

of the motor vehicle, including those related to repair orders or claims

involving the motor vehicle. [¶](12) Warranty policies and procedure manuals.

[¶](13) Service manuals reasonably related to the nonconformities pertaining to

the motor vehicle. [¶](14) If a pre-suit restitution or replacement request is

made, all call recordings of pre-suit communications with the consumer

available at the time of service of the complaint. [¶](15) If a pre-suit

restitution or replacement request is made, the manufacturer's written

statement of policies and procedures used to evaluate customer requests for

restitution or replacement pursuant to "Lemon Law" claims. [¶](16) If a

pre-suit restitution or replacement request is made, any nonprivileged,

prelitigation evaluation. [¶](17) Any warranty extensions or modifications

issued by the manufacturer on the motor vehicle." (Code Civ. Proc., § 871.26,

subd. (h).)

III.

Discussion

Plaintiff moves to compel FCA to

produce documents set forth in Code of Civil Procedure Section 871.26,

subdivision (h)(6), (h)(7), (h)(8), (h)(9), (h)(10), (h)(12), and (h)(13). On

October 9, 2025, FCA filed a demurrer to the original complaint, thus FCA had

until December 8, 2025 to produce initial disclosure documents. On December 10,

2025, FCA produced over 1,000 pages of repair records, warranty claims records, sales brochures, sales documents, vehicle information detail report, glove box documents, the Monroney label, Technical Service Bulletins (“TSBs”), and recalls applicable to the Subject Vehicle. (Tremonti Decl., ¶12.) Additionally, FCA states that the “Pre-Delivery Inspection Records” and “Warranty Transaction History” sought by Plaintiff were contained within the warranty claims records initially produced. (Id.) Similarly, FCA produced the field action and recall documentation, which are contained within the TSBs and recall records, respectively. (Id.)

With respect to the documents not produced, FCA asserts that it withheld the FCA Warranty Administration Manual, FCA Dealer Policy Manual, and Customer Assistance Center (“CAC”) Policies and Procedures and Service Manual because they are confidential and proprietary materials. (Tremonti Decl., ¶13.) As a result, FCA provided Plaintiff with a proposed Stipulation and Protective Order (“SPO”) that same day to facilitate the production of these documents. (Id.) However, FCA had to follow up with Plaintiff’ counsel three times about the status of the SPO before it was returned signed on April 30, 2026. (Id., ¶¶14-5.) Thereafter, FCA states it produced the confidential materials on May 1, 2026 and filed the SPO with the Court. (Id., ¶15; SPO, 5/6/26.) Although FCA has not attached any

proof of service regarding the confidential documents being provided nor correspondence concerning the SPO, Plaintiff has not filed a reply brief disputing these facts FCA declares under penalty of perjury. Furthermore, the duly executed SPO is a part of the Court's record, so presumably the documents withheld on the basis of confidentiality and proprietary information have been produced in accordance with the SPO.

A. Request for Sanctions

"Unless the party failing to comply with this section shows good cause, notwithstanding any other law and in addition to any other sanctions imposed pursuant to this chapter, a court shall impose sanctions as follows: (1) A one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the document production requirements as prescribed in subdivision (b)." (Code Civ. Proc., § 871.26, subd. (j)(1).)

Here, FCA

has demonstrated good cause in withholding the documents it considers to be confidential and proprietary information absent a SPO or court ordered protective order. There is no indication that Code of Civil Procedure Section

871.26, subdivision (h) meant to foreclose on discovery protections, i.e., a party's ability to object on the basis of privilege, trade secret, and/or confidential and proprietary information or seek protective orders to ensure certain documents it deems confidential, privilege, and/or proprietary information remain so. Thus, Plaintiff is not entitled to discovery sanctions at this time.

IV.

Conclusion

& Order

For the foregoing reasons, Plaintiff

Kishore Jayapal's Motion to Compel Initial Discovery Disclosures from Defendant

FCA US LLC is DENIED. The request for monetary sanctions is also DENIED.

Plaintiff is ordered to

give notice of ruling.